

**Tamil Nadu Climate Resilient Urban
Development Program (TNCRUDP)**

[P179189]

**Draft
ENVIRONMENTAL AND SOCIAL
COMMITMENT PLAN (ESCP)**

**Tamil Nadu Urban Infrastructure and Financial Services
Ltd (TNUIFSL)**

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**Directorate of Municipal Administration (DMA), State
of Tamil Nadu**

September 25, 2023

ENVIRONMENTAL AND SOCIAL COMMITMENT PLAN

1. The State of Tamil Nadu is implementing the Tamil Nadu Climate Resilient Urban Development (TNCRUDP) Project (the Project), through the Tamil Nadu Urban Infrastructure and Financial Services Ltd (TNUIFSL) and Directorate of Municipal Administration (DMA), as set out in the Loan Agreement and the Operation Agreement. The International Bank for Reconstruction and Development (the World Bank) has agreed to provide financing for the Project, as set out in the referred agreement(s).
2. The State of Tamil Nadu shall ensure that the Project is carried out in accordance with the Environmental and Social Standards (ESSs) and this Environmental and Social Commitment Plan (ESCP), in a manner acceptable to the World Bank. The ESCP is a part of the Loan Agreement and the Operation Agreement. Unless otherwise defined in this ESCP, capitalized terms used in this ESCP have the meanings ascribed to them in the referred agreements.
3. Without limitation to the foregoing, this ESCP sets out material measures and actions that the State of Tamil Nadu (through TNUIFSL and DMA) shall carry out or cause to be carried out, including, as applicable, the timeframes of the actions and measures, institutional, staffing, training, monitoring and reporting arrangements, and grievance management. The ESCP also sets out the environmental and social (E&S) instruments that shall be adopted and implemented under the Project, all of which shall be subject to prior consultation and disclosure, consistent with the ESS, and in form and substance, and in a manner acceptable to the World Bank. Once adopted, said E&S instruments may be revised from time to time with prior written agreement by the World Bank.
4. As agreed by the World Bank and the State of Tamil Nadu, this ESCP will be revised from time to time if necessary, during Project implementation, to reflect adaptive management of Project changes and unforeseen circumstances or in response to Project performance. In such circumstances, the State of Tamil Nadu, through Tamil Nadu Urban Infrastructure and Financial Services Ltd (TNUIFSL) and Directorate of Municipal Administration (DMA), and the World Bank agree to update the ESCP to reflect these changes through an exchange of letters signed between the World Bank and the State of Tamil Nadu, Managing Director of TNUIFSL. The State of Tamil Nadu shall promptly disclose the updated ESCP.

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
MONITORING AND REPORTING			
A	REGULAR REPORTING Prepare and submit to the World Bank Quarterly Monitoring Reports on the environmental, social, health and safety (ESHS) performance of the project, stakeholder engagement activities and functioning of the grievance's mechanism.	Starting from the Effectiveness date, Quarterly Monitoring Reports will be submitted no later than 30 days after the end of each reporting period, throughout project implementation.	TNUIFSL / DMA
B	INCIDENTS AND ACCIDENTS Promptly notify the World Bank of any incident or accident related to the Project which has, or is likely to have, a significant adverse effect on the environment, the affected communities, the public or workers., including, inter alia, cases of sexual exploitation and abuse (SEA), sexual harassment (SH). Provide sufficient detail regarding the incident or accident, indicating immediate measures taken or that are planned to be taken to address it, and any information provided by any TA consultant and it's supervising entity, as appropriate. Subsequently, as per the Bank's request, prepare a report on the incident or accident and propose any measures to prevent its recurrence.	Notify the Bank within 24 hours after learning of the incident or accident. Provide subsequent reports to the World Bank, including any action taken, and a status update to be submitted within a period of 15 days from the incident.	TNUIFSL / DMA
ESS 1: ASSESSMENT AND MANAGEMENT OF ENVIRONMENTAL AND SOCIAL RISKS AND IMPACTS			
1.1	ORGANISATIONAL STRUCTURE for TA Component Throughout project implementation, a PMU shall be maintained with qualified staff and resources to support management of ESHS risks and impacts of the Project including any Environmental, Health and Safety Specialist, Social Specialist and Gender Expert, Communication and Stakeholder Engagement Specialist. TNUIFSL resources are already in place. The available E&S experts will take care of ESHS, Gender, Communication and stakeholder consultations and additional experts will be appointed as and when required. DMA already has a PMU and additional experts E&S will be designated as and when required.	Staff to be in place within three months of Project Effectiveness and throughout Project implementation.	TNUIFSL / DMA
1.2	ENVIRONMENTAL AND SOCIAL INSTRUMENTS Cause TA consultants to prepare Environmental and Social Management Plan (ESMP) and ESHS in TA products.		TNUIFSL / DMA

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
	Incorporate relevant E&S mitigation actions and measures contained in this ESCP, including any SEA/SH measures, ESHS measures specifications, personnel in the terms of reference of TA Consultants including PMC of TNCRUDP, before launching the procurement process for the relevant Project activities (TAs) and shall thereafter be complied with throughout the carrying out of such activities.	Include for all TAs under IPF throughout implementation	
1.3	ENVIRONMENTAL STATUTORY CLEARANCE AND APPROVALS As part of TA, capture the list of clearances, licenses/approvals, and permits if any, under existing regulatory frameworks that are applicable / required and from relevant national, state, and/or local authorities.	Before the start of Works/activities which require such permits will be obtained by the respective implementing agencies.	All Project Agencies including DMA, TNUIFSL, TA consultants/ Vendors as applicable
1.3	MANAGEMENT OF CONSULTANTS / VENDORS ESHS specifications and personnel shall be included in the contract documents for TA. Implementation TA consultants shall prepare ESMP & ESHS in TA products	<i>Throughout Project implementation.</i>	All Project Agencies, TA consultants/ Vendors as applicable
1.4	TECHNICAL ASSISTANCE Ensure that the consultancies, studies, capacity building, training, and any other technical assistance activities under the TA Component of the Project are screened for environmental and social risks and are carried out in accordance with terms of reference acceptable to the World Bank that are consistent with the ESSs. Thereafter ensure that the outputs of such activities comply with the terms of reference.	Prior to launching the bidding process. Thereafter maintained throughout Project implementation.	TNUIFSL, DMA
1.7	ACTIVITIES SUBJECT TO RETROACTIVE FINANCING [As noted by ESS1 para. 17, a project may comprise or include existing facilities or activities. Some of these activities may be subject to retroactive financing under the project. These activities should be identified during project preparation, and due diligence must be conducted to identify any required actions to ensure that such activities meet the requirements of the ESSs. In some cases, an E&S audit may be needed, which normally would be completed during project preparation. In others, amendment to existing work contracts, or a corrective action plan may be needed. Accordingly, this action should reflect the due diligence requirements applicable to the retroactive financing and their timeframe] For any activity under retroactive financing, due diligence must be conducted to identify any required actions to ensure that such activities meet the requirements of the ESSs & include them in the ToRs/Scope of Work	Within 3 months of effectiveness	TNUIFSL, DMA

MATERIAL MEASURES AND ACTIONS		TIMEFRAME	RESPONSIBLE ENTITY
ESS 2: LABOR AND WORKING CONDITIONS			
2.1	LABOR MANAGEMENT PROCEDURES The Project shall be carried out in accordance with the applicable requirements of ESS2 including through, inter alia, a) implementing adequate occupational health and safety measures (including personal protective equipment, and emergency preparedness and response measures), b) setting up grievance redressal mechanisms for Project workers (responsive to SEA/SH), and c) incorporating labor requirements into the ESHS specifications of the procurement documents under this IPF TA. Necessary resources will be included in the scope of the studies to be taken up under TA. Further undertaking will be obtained from the prospective Consultancy Firm/Consultant.	Throughout Project implementation.	TNUIFSL, DMA, IAs
2.2	GRIEVANCE MECHANISM FOR TA COMPONENT STAFF Establish and operate a grievance mechanism for the Consultants / Vendors, as described in the LMP under Action 2.1 above and consistent with ESS 2. GRM will be responsive to SEA/SH.	<i>Within 3 months of project effectiveness. Will be in effect throughout Project implementation.</i>	All Project agencies including TNUIFSL, DMA
2.3	OCCUPATIONAL HEALTH AND SAFETY (OHS) MEASURES UNDER TA COMPONENT Implement appropriate OHS measures to maintain a safe working environment and workplace. Relevant staff involved in IPF Component shall be trained and remedies for occupational injuries death and disability and will follow the WBG's Environment Health and Safety Guidelines (EHSG). Regularly monitor and supervise OHS as part of all IPF Component activities	Throughout Project implementation.	All Project agencies including TNUIFSL, DMA
ESS 3: RESOURCE EFFICIENCY AND POLLUTION PREVENTION AND MANAGEMENT [the relevance of ESS3 is established during the ESA process. ESS3 may require the adoption of specific measures to cover energy, water (e.g., water balance) and raw materials use, management of air pollution, hazardous and nonhazardous wastes, chemicals and hazardous materials and pesticides. Depending on the project, these measures may be set out in an E&S instrument (e.g., ESMP) already mentioned in the section under ESS1 above or as a stand-alone instrument or as a separate measure or action.].			
3.1	WASTE MANAGEMENT PLAN Adopt and implement a Waste Management Plan (WMP), to manage all types of wastes associated with project activities including hazardous and non-hazardous wastes, consistent with ESS3, including, inter alia, measures to avoid and minimize the use of plastics, manage all solid waste (from training and capacity building activities including packaging waste) and e-waste from developing, training/capacity development, and purchase of equipment. and use of management information systems.	Continuous, throughout Project implementation.	All Project agencies including TNUIFSL, DMA
3.2	RESOURCE EFFICIENCY AND POLLUTION PREVENTION AND MANAGEMENT Use energy-efficient equipment (including ICT air conditioners, lights, and fans) by incorporating the requirements in the ToRs for the IPF Component.	Continuous, throughout Project implementation.	All Project agencies including TNUIFSL, DMA

ESS 4: COMMUNITY HEALTH AND SAFETY UNDER TA COMPONENT		
	Not relevant	Not relevant
ESS 5: LAND ACQUISITION, RESTRICTIONS ON LAND USE AND INVOLUNTARY RESETTLEMENT UNDER TA COMPONENT		
	Not relevant	Not relevant
ESS 6: BIODIVERSITY CONSERVATION AND SUSTAINABLE MANAGEMENT OF LIVING NATURAL RESOURCES UNDER TA COMPONENT		
	Not relevant	Not relevant
ESS 7: INDIGENOUS PEOPLES/SUB-SAHARAN AFRICAN HISTORICALLY UNDERSERVED TRADITIONAL LOCAL COMMUNITIES UNDER TA COMPONENT		
	Not relevant	
ESS 8: CULTURAL HERITAGE UNDER TA COMPONENT		
	Not relevant Chance Find procedures to be followed if any such Heritage is found during intrusive activities related to TA	Throughout project preparation Consultants, Vendors
ESS 10: STAKEHOLDER ENGAGEMENT AND INFORMATION DISCLOSURE UNDER TA COMPONENT		
	TA activities specific SEP including information disclosure will be prepared and implemented.	Prior to implementation of each specific TA activity(ies) and implemented through the duration of the activity(ies). TNUIFSL / DMA
CAPACITY SUPPORT		
CS1	Project Management Unit (at TNUIFSL & DMA) and other relevant implementing support staff responsible for the Project to receive training on the Project's ESHS plans and instruments, and the roles and responsibilities of different key agencies in the ESF implementation related to IPF Component. Based on E&S Capacity Assessment following types of training shall be provided to the relevant target groups 1. Orientation & periodic training to staff of Project agencies on the World Bank ESF and its implementation and supervision requirements related TA Component 2. Solid / Plastic Waste & E-Waste Management for activities supported by TA 3. Training on GBV/SEA for all TA Component Staff. Additional training needs shall be identified and provided during project implementation.	Throughout TNCRUDP implementation TNUIFSL / DMA
CS2	Training on OHS / CHS including for TA consultants, vendors, and all Project workers on occupational health and safety including on emergency prevention and preparedness and response arrangements to emergency situations.	Throughout TNCRUDP implementation TNUIFSL / DMA